

**4-959. Notice of completion of briefing; upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF \_\_\_\_\_

\_\_\_\_\_ JUDICIAL DISTRICT COURT

In re \_\_\_\_\_,

No.

Petitioner.

**NOTICE OF COMPLETION OF BRIEFING**

*(for use with petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))*

Petitioner hereby notifies the Court, in accordance with Rule 1-077.1(H) NMRA, that briefing is complete as to Petitioner's Petition to Expungement Arrest Records and Public Records and that the Petition is ready for decision. Petitioner further states:

☐ Notice of the Petition has been provided via first-class United States mail to:

☐ The District Attorney in the \_\_\_\_\_ Judicial District;

☐ The New Mexico Department of Public Safety.

☐ At least sixty-three (63) days have passed since Petitioner mailed the Petition to the parties entitled to notice.

☐ The District ~~[Attorney]~~ Attorney's Response[:]

☐ The district attorney has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ The district attorney has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from the district attorney.

☐ The New Mexico Department of Public ~~[Safety]~~ Safety's (DPS) Response[:]

☐ DPS has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ DPS has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from DPS.

☐ Petitioner has included an Affirmation in Support of Expungement (Form 4-960.2 NMRA) with this Notice of Completion of Briefing.

1  
2  
3 Printed name of Petitioner

4  
5 Signature of Petitioner

6  
7 Mailing Address

8  
9 Telephone Number

10  
11 Date

12  
13  
14 Attorney Name (*if applicable*)

15  
16 Attorney Signature

17  
18 Mailing Address

19  
20 Telephone Number

21  
22 Email

23 **CERTIFICATE OF SERVICE**

24 I hereby certify that on this \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_ this Notice of  
25 Completion of Briefing was served by United States first class mail on the following:

26  
27 (The District Attorney in the \_\_\_\_\_ Judicial District)

28  
29 (Address)

30  
31 (Telephone)

32  
33  
34 **AND**

35  
36 **New Mexico Department of Public Safety**  
37 P.O. Box 1628, Santa Fe, New Mexico, 87504-1628  
38 (505) \_\_\_\_\_  
39  
40  
41

42  
43 Signature of person sending paper

Date of signature

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]